

SERVICE AGREEMENT

THIS SERVICE AGREEMENT (the “Agreement”) is made and entered into on this **25th day of December, 2025** (the “Effective Date”),

BY AND BETWEEN:

DELTA CONSULTING SERVICES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U12345TG2015PTC567890**, having its registered office at **Plot No. 55, HITEC City, Hyderabad – 500081, Telangana, India**, represented herein by its authorized signatory **Mr. Karan Mehta**, Chief Executive Officer (hereinafter referred to as the “Service Provider”, which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

OMEGA SOLUTIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U67890TG2018PTC123456**, having its registered office at **Plot No. 18, Whitefield, Bengaluru – 560066, Karnataka, India**, represented herein by its authorized signatory **Ms. Priya Nair**, Managing Director (hereinafter referred to as the “Client”, which expression shall, unless repugnant to the context, include its successors and permitted assigns).

(The Service Provider and Client are individually referred to as a “Party” and collectively as the “Parties”).

RECITALS

A. The Client desires to engage the Service Provider to provide professional consulting, technical support, and software development services (the “Services”).

B. The Service Provider represents that it has the necessary expertise, personnel, and resources to perform the Services as per industry standards.

C. The Parties wish to set out the terms, conditions, and responsibilities for the provision of the Services.

1. SCOPE OF SERVICES

1.1 The Service Provider shall provide the following Services:

- Custom software development and maintenance
- Technical consulting and system integration
- On-site support and training for Client’s staff
- Any additional services mutually agreed in writing

1.2 The Services shall be performed in accordance with the specifications, timelines, and quality standards set forth in **Schedule A** attached hereto.

2. SERVICE FEES AND PAYMENT

2.1 The Client shall pay the Service Provider a total fee of **INR 1,20,00,000/- (Rupees One Crore Twenty Lakh Only)** for the Services.

2.2 Payment Schedule:

- **20%** advance upon execution of this Agreement;
- **40%** upon completion of the first milestone as per Schedule A;
- **30%** upon completion of the second milestone;
- **10%** upon final acceptance and delivery of all Services.

2.3 All payments shall be made via wire transfer to the Service Provider's designated bank account within **15 working days** of invoice receipt.

3. TERM AND TERMINATION

3.1 This Agreement shall commence on the Effective Date and continue for a period of **12 months**, unless earlier terminated as provided herein.

3.2 Either Party may terminate this Agreement with **30 days' prior written notice** for convenience.

3.3 The Agreement may be terminated immediately in case of material breach, insolvency, or misconduct by either Party.

3.4 Upon termination, the Client shall pay for all Services rendered up to the termination date.

4. CONFIDENTIALITY

4.1 Both Parties shall maintain the confidentiality of all proprietary information, trade secrets, and sensitive data exchanged during the term of this Agreement.

4.2 Confidentiality obligations shall survive for **3 years** post termination of this Agreement.

5. INTELLECTUAL PROPERTY

5.1 All intellectual property developed by the Service Provider specifically for the Client under this Agreement shall be assigned to the Client upon full payment of fees.

5.2 Pre-existing intellectual property of the Service Provider shall remain the property of the Service Provider.

5.3 The Client shall not use any Service Provider's IP beyond the scope of this Agreement without prior written consent.

6. WARRANTIES AND REPRESENTATIONS

6.1 The Service Provider warrants that the Services shall be performed with reasonable skill, care, and diligence.

6.2 The Service Provider does not warrant that the Services will be error-free but shall promptly correct any material defects discovered.

6.3 The Client represents that it has the authority to engage the Service Provider and provide all necessary information for the Services.

7. LIMITATION OF LIABILITY

7.1 Neither Party shall be liable for any indirect, incidental, or consequential damages arising from this Agreement.

7.2 The maximum liability of either Party shall not exceed the total fees paid under this Agreement.

8. DISPUTE RESOLUTION

8.1 Any dispute shall first be attempted to resolve amicably.

8.2 If unresolved, disputes shall be referred to **arbitration under the Indian Arbitration and Conciliation Act, 1996**, with venue at **Bengaluru, Karnataka**.

9. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the **laws of India**.

10. MISCELLANEOUS

10.1 Entire Agreement: This Agreement supersedes all prior agreements and understandings.

10.2 Amendments: Any amendment must be in writing and signed by both Parties.

10.3 Force Majeure: Neither Party is liable for delays due to causes beyond reasonable control.

10.4 Severability: Invalid provisions shall not affect the remainder of the Agreement.

11. SIGNATURES

For Delta Consulting Services Pvt Ltd (Service Provider)

Signature: _____

Name: **Mr. Karan Mehta**

Designation: Chief Executive Officer

Date: 25 December 2025

For Omega Solutions Pvt Ltd (Client)

Signature: _____

Name: **Ms. Priya Nair**

Designation: Managing Director

Date: 25 December 2025

Witnesses:

1. Name: **Mr. Arjun Rao** | Signature: _____ | Address: Hyderabad, Telangana
2. Name: **Ms. Kavya Menon** | Signature: _____ | Address: Bengaluru, Karnataka